NORRIS TRUST

Versus

MERCY MUZONDIWA

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 7, 12 NOVEMBER 2025, 20 JANUARY AND 12 FEBRUARY 2026

Application of Absolution from the Instance

G. Madzoka with D Mujaya and T. J Madotsa, for the plaintiff
I. Nderere with T. Nyapfumbi, for the defendant

KABASA J: The plaintiff issued summons in which it claimed for the ejectment of the defendant and all those claiming occupation through the defendant. The claims for holding over damages and interest were abandoned at the commencement of the trial and will therefore not be referred to in this judgment.

The plaintiff's claim, as elaborated in its declaration is premised on the assertion that it is the registered owner of stand 376 Que Que Township of Stand 490 Que Que Township, commonly known as 2B Flamboyant Avenue Msasa Park, Kwekwe. Such property is held under Deed of Transfer 2106/2008. The defendant was therefore in wrongful and unlawful occupation of the property having been given notice to vacate which the defendant failed to take heed of.

After entry of appearance to defend, the plaintiff filed an application for Summary judgment, which application was dismissed. The defendant subsequently filed her plea and resisted the plaintiff's claim. The import of the defence was that the Deed of transfer was a forged document. The defendant was in lawful occupation of the property as it was sold to her in 2008 by "special arrangement."

The matter was subsequently referred to trial and about nine issues were identified. However in light of the abandonment of the issues already alluded to, the relevant issues were:-

1. Whether plaintiff is the registered owner of Stand 376 Que Que Township of Stand 490 Que Que Township, more commonly known as Number 2B Flamboyant Avenue, Msasa Park, Kwekwe.
2. Whether Deed of Transfer Number 2106/2008 is an authentic document.
3. Whether the defendant is in lawful occupation of the property.

Mr Thomas Norris, a trustee of the Norris Trust was the only witness for the plaintiff. The gist of his testimony was that the Trust was registered in 2003 (the Deed of Trust was produced as Exhibit 1). In 2008 the Trust bought the property in question from a deceased estate and obtained title for it. The Agreement of Sale, the Letters of Administration, the Master's S120 Consent and the Title Deed were produced through the witness and duly marked exhibit 2-5 respectively.

The Agreement of Sale was concluded on 17 June 2008 and the Master's Consent was granted on 20 August 2008.

The cross-examination of this witness centred on his authority to represent the Trust and the grant of the Master's consent.

After the witness's evidence the plaintiff's case was closed, triggering the application this judgment is concerned with.

Counsel for the defendant contended that no resolution was produced authorising the witness to act on behalf of the plaintiff. The property was bought from a deceased estate and so a S120 Authority was required. Such authority was given by the Master post the Agreement of Sale. The sale was therefore null and void and must be invalidated.

There is therefore no valid basis for proceeding beyond the plaintiff's case and the application for absolution from the instance must therefore be granted.

Counsel for the plaintiff held a different view. Counsel contended that the plaintiff's claim is one for eviction of the defendant. The defendant has resisted eviction for 16 years. After entry of appearance to defend, the plaintiff applied for Summary judgment. In that application the witness deposed to the founding affidavit expressly stating that he was authorised to bring the proceedings on behalf of the plaintiff. The defendant, who was the respondent then, took no issue with that assertion. It follows therefore that the defendant previously accepted Thomas Norris's authority. After the Summary judgment application

was dismissed, the defendant filed a plea and only resisted the claim on two grounds, that the plaintiff's Title Deed is a forged document and that she was in lawful occupation of the property which she bought by special arrangement. The defendant had also claimed ownership of the property under HC 2256/19 which claim was dismissed, having been adjudged to have prescribed.

The defendant did not challenge Mr Norris' authority and did not raise the issue of the illegality of the sale which birthed the Title Deed and cannot seek to raise such in an application for absolution. The Title Deed was never challenged and has not been impugned. It therefore has not been set aside.

The defendant can therefore not seek absolution from the instance in the circumstances, so counsel argued.

I turn now to the court's approach to applications of this nature. Both counsel referred the court to useful and relevant case authorities and the court is indebted to counsel for that. I do not intend to refer to each and every case so cited but to the principles that run through these cases.

In *Bakari* v *Total Zimbabwe (Pvt) Ltd* S 21-19 the applicable test was succinctly stated thus:-

> "Is there sufficient evidence on which a court might make a reasonable mistake and give judgment for the plaintiff …"

> In *Chiswanda (in his capacity as father and guardian of Chidochashe Chiswanda)* v *OK Zimbabwe Limited* S 84-20 GOWORA JA (as she then was) had this to say:-

> "Crucially the test to be applied is not whether or not the evidence for the plaintiff establishes what would finally be required to be established to obtain judgment. The evidence required at this stage is whether or not the plaintiff has made out a *prima facie* case to prove the claim. The correct approach to an application for absolution from the instance was set out in *Gordon Lloyd Page & Associates* v *Rivera* 2001 (1) SA 99 at pp 92-93 by HARMS JA. He stated:-

> "The test for absolution to be applied by a trial court at the end of a plaintiff's case… is not whether the evidence led by plaintiff establishes what would finally be required to be established, but whether there is evidence, upon which a court, applying its mind reasonably to such evidence, could or might (not should) nor ought to find for the plaintiff."

In casu, it is not disputed that in deposing to the application for Summary judgment founding affidavit, Thomas Norris stated that he had authority to act on behalf of the Trust. The defendant took no issue with that. One could therefore conclude that it was accepted that Thomas Norris was not on a frolic of his own and that it was the Trust which was litigating.

Where no challenge has been made to the issue of authority, it is not a legal requirement that such authority be produced. (*Dube* v *Premier Service Medical Aid Society & Anor* S 32-22) The court has to be satisfied that such litigation is at the instance of the Trust unless factors exist to show otherwise. It therefore cannot be said in all litigation such authority should be furnished even where the authority is not challenged.

The Title Deed has not been impugned and the property in question is owned by the Trust as per the title tendered in evidence.

> "The court should be extremely chary of granting absolution at the close of the plaintiff's case. The court must assume that in the absence of very special considerations, such as the inherent unacceptability of the evidence adduced, the evidence is true. The court should not at this stage evaluate and reject the plaintiff's evidence. The test to be applied is not whether the evidence led by the plaintiff establishes what will finally have to be established. Absolution from the instance at the close of the plaintiff's case may be granted if the plaintiff has failed to establish an essential element of his claim." (*Bakari* v *Total Zimbabwe (Pvt) Ltd (supra*)

I have already touched on the two issues upon which this application for absolution is anchored. It is not so much the credibility or otherwise of the witness or the failure to establish an essential element of the claim.

The claim *in casu* is essentially one of *rei vindicatio*. The essential elements would therefore be proof of ownership and that the other party has no right of retention to resist eviction. I have already stated that the defendant's claim under HC 2256/19 was dismissed. That claim was meant to establish the right of retention. With its dismissal, can it be said a case for absolution from the instance has been made. I think not.

In the *Chiswanda* case (supra) GOWORA JA quoted, with approval, BEADLE CJ in *Supreme Service Station (1969) (Pvt) Ltd* v *Fox and Goodridge (Pvt) Ltd* 1971 (1) RLR 1, at 5-6 where the learned judge said: -

> "… I must stress that rules of procedure are made to ensure that there is justice between the parties, and, so far as is possible courts should not allow rules of procedure to be used to cause an injustice. If the defence is something peculiarly within the knowledge of a defendant, and the plaintiff has made out some case to

> answer, the plaintiff should not be lightly deprived of his remedy without first hearing what the defendant has to say. A defendant who might be afraid to go into the box should not be permitted to shelter behind the procedure of absolution from the instance. I might usefully quote here what was said by SUTTON J in *Erasmus* v *Boss* 1930 CPD CPP 204 at 207:-
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> "In *Theron* v *Behr* 1918 CPD 433, JUTA J, at p 451 states that according to the practice in this court in later years judges have become very loath to decide upon questions of fact without hearing all the evidence on both sides."

In casu, the plaintiff' s witness has placed on record the Deed of Trust, the Agreement of Sale and the Title Deed. Whilst this also meanders into legal issues, that is, the validity of the agreement of sale in light of the s120 authority which was granted post the sale, the point is the defendant is yet to adduce evidence on why she should not be evicted from the property in question. As already stated the Deed of Transfer has not been impugned and is proof of ownership by the plaintiff of the property it seeks to evict the defendant from.

The legal issues which may arise with regards to Mr Norris's authority and the sale agreement cannot possibly be disposed of in an application for absolution, regard being had to the arguments by counsel for the plaintiff on these same points.

I therefore come to the conclusion that a case for absolution from the instance has not been made.

As regards costs, it is my considered view that this is a case where the issue of costs ought to be decided at the conclusion of the matter.

In the result, I make the following order:-

1. The application for absolution from the instance be and is hereby dismissed.

2. Costs shall be in the cause.

3. The Registrar is directed to set the matter down for continuation of trial.

Mawadze and Mujaya, applicant's legal practitioners
Scanlen and Holderness, respondent's legal practitioners